



CHAPTER xxix.

An Act to confer powers upon the mayor aldermen and burgesses of the borough of Bideford in respect of their harbour undertaking and for other purposes. A.D. 1925.
[30th June 1925.]

WHEREAS by an Act passed in the ninth year of the reign of King George the Fourth and herein referred to as "the Bideford Harbour Act 1828" the lord of the manor of Bideford in the county of Devon was empowered to levy tolls and rates for goods imported at or exported from the quay at Bideford and for keyage and keelage of ships and vessels in portions of the harbour of Bideford and the said Act contains powers for regulating ships and vessels in the said harbour :

And whereas by a deed dated the eighteenth day of January one thousand eight hundred and eighty-one the mayor aldermen and burgesses of the borough of Bideford (in this Act referred to as "the Corporation") acquired all the estate and interest of the lord of the manor of Bideford in the harbour and quay at Bideford including all his rights and powers under the Bideford Harbour Act 1828 :

And whereas it is expedient that the limits of the harbour should be defined and that further powers should be conferred upon the Corporation with reference to the harbour undertaking :

And whereas the rates and charges authorised by the Bideford Harbour Act 1828 to be levied and made

[Ch. xxix.] *Bideford Harbour* [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925. are insufficient to cover the cost of maintaining and
— improving the harbour and it is expedient that a new
schedule of rates and charges should be authorised :

And whereas it is expedient that such other provisions should be made as are in this Act contained :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Bideford Harbour
Act 1925.

Incorporation of Har- 2. The provisions of the Harbours Docks and
bours Docks Piers Clauses Act 1847 (other than sections 16 to 19
and Piers of that Act and except where expressly varied by or
Clauses Act inconsistent with the provisions of this Act) are hereby
1847. incorporated with and form part of this Act.

In the application of the Harbours Docks and Piers Clauses Act 1847 to this Act the expressions " packet boat or Post Office packet " and " Post Office bag of letters " used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act :

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall exempt from rates duties regulation or control any such vessel as aforesaid if she also conveys passengers goods or live stock for hire.

Interpreta- 3. In this Act the several words and expressions
tion. to which meanings are assigned by the Harbours Docks
and Piers Clauses Act 1847 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

" The Corporation " means the mayor aldermen
and burgesses of the borough of Bideford ;

" The harbour " means so much of the River
Torridge and the bed and banks of the River

A.D. 1925.

Torridge below high water mark of spring tides as lies within the borough of Bideford;

“The quay and wharf” means the quay and wharf situate on the western side of the River Torridge within the harbour and extending for a distance of twelve hundred feet or thereabouts northward from Bideford Bridge and includes the embankments walls slipways and other constructions in connection therewith;

“Vessel” means any ship barge lighter boat or craft of any class or description and however propelled;

“Harbour undertaking” means and includes all the property rights and powers of the Corporation held by them in connection with the harbour;

“Harbour revenue” means the revenue received from rates and charges or otherwise under this Act;

“Rating limits” means the quay and wharf and the sand or soil of the River Torridge held as appurtenant thereto by the Corporation as proprietors of the quay and wharf;

“The Act of 1828” means the Bideford Harbour Act 1828.

4. The limits of the harbour within which the Corporation shall have authority to exercise the powers conferred by the Act of 1828 and this Act and within which the powers of the harbour-master may be exercised shall subject to the provisions of this Act comprise the quay and wharf and the harbour.

Limits of
harbour.

5. The Corporation may construct and maintain on the quay and wharf and may furnish and equip and make such reasonable charges as they think fit for the use of and admission to fish markets and stalls sheds cranes waiting rooms kiosks lavatories sanitary and other conveniences as they may consider necessary or desirable.

Power to
erect build-
ings on
quay &c.

6. Subject to the provisions of this Act the Corporation may construct or execute and maintain repair and renew upon any lands for the time being belonging to them all such works as they may deem

Power to
construct
sea defences.

A.D. 1925. — necessary or expedient for preventing erosion or encroachment by the sea or river of or upon any part of the harbour quays wharves or other property of the Corporation held by them in connection with or as part of their harbour undertaking.

Power to dredge.

7.—(1) The Corporation may deepen dredge scour and excavate any portion of the foreshore and bed of the River Torridge within the harbour and as far as its outfall to the sea to such extent as may be necessary to secure a sufficient waterway and approach to the harbour and to the quay or wharf for vessels using the same.

(2) All sand mud and other materials dredged up or removed for the purposes and to the extent aforesaid shall be the property of the Corporation and they may sell or otherwise dispose of or remove or deposit the same as they think fit. Provided that no sand mud or other materials shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained. Nothing herein contained shall be deemed to authorise in relation to any foreshore or bed of the River Torridge or the sea vested in the Crown the removal or sale of any sand mud or other materials by the Corporation or their licensees otherwise than to the extent hereinbefore mentioned.

(3) All money arising from any sale or other disposition of sand mud or other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the harbour revenue under this Act is to be applied.

Power to purchase dredgers.

8. The Corporation may provide take on lease hire and use steam or other dredgers eroders engines lighters and other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Act and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same. All sums received in respect of any such letting on hire shall be deemed to form part of the harbour revenue and all moneys realised by any such sale shall be applied towards carrying into effect any of the

purposes of this Act to which capital is properly applicable. A.D. 1925.

9. As from the first day of July one thousand nine hundred and twenty-five the Corporation may subject and according to the provisions of this Act demand receive and recover in respect of vessels anchoring or mooring and of goods animals fish and other things shipped unshipped or transhipped within the rating limits any rates and charges not exceeding those specified in the First Schedule to this Act. Power to levy rates.

10. The Corporation may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Act but so that no preference be in any case given to any person over any other person using the harbour quay and wharf in the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act. Power to vary exemptions and compound rates.

11. The Corporation may (so far as the rates specified in the First Schedule to this Act do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Corporation or in respect of any services rendered by them in connection with the harbour or the quay and wharf. Rates for warehouses &c.

12. As from the passing of this Act the Bideford Harbour (Temporary Increase of Charges) Order 1925 shall cease to have effect. Annulment of Temporary Increase of Charges Order.

13. The Corporation may demand and take in respect of any vessel not mooring or anchoring at the quay and wharf but making use of the facilities of the same by means of lighters packet boats or otherwise dues duties or charges not exceeding half of the respective dues duties or charges specified in the First Schedule to this Act. Tolls on vessels using but not entering harbour.

14.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the limits of the harbour forthwith furnish to the collector of harbour Master of fishing vessel to report take of fish.

A.D. 1925. — rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof.

(2) If the master or owner of a vessel knowingly fails to comply with this section he shall for each offence be liable on summary conviction to a penalty not exceeding ten pounds.

Harbour
master may
prevent
sailing of
vessels.

15. The harbour master may prevent the removal or sailing from within the rating limits of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Act.

Fishing ves-
sels under
stress of
weather ex-
empt from
rates.

16. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the harbour and not breaking bulk while making use thereof be exempt from rates leviable under this Act.

Revision of
rates and
charges.

17.—(1) If at any time it is represented in writing to the Minister of Transport (in this section referred to as “the Minister”)—

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Corporation;

that under the circumstances then existing all or any of the rates and charges authorised in pursuance of this Act should be revised the Minister may if he thinks fit make an order revising all or any of such rates and charges as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall

cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section. A.D. 1925.
—

(2) No application may be made under this section for a general revision of the rates and charges for the time being authorised under this Act within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rate or charge within twelve months after the date of an order made by the Minister for a general revision or of any previous application for a revision of the particular rate or charge in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section—

(a) as if the Minister were referred to therein in lieu of the Board of Trade;

(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) as if in section 4 of the said Act of 1874 the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the president or of one of the secretaries of the Board."

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant

A.D. 1925. — and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

Power to
lease rates.

18.—(1) The Corporation may with the previous consent in writing of and upon such terms and conditions and restrictions and for such period as may be sanctioned by the Minister of Transport lease to any company corporation or person the rates and other charges authorised to be levied made and taken under this Act.

(2) As from the date prescribed by any such lease the lessee during the continuance of and to the extent provided in the lease shall have and may exercise all or any of the powers conferred upon the Corporation by this Act and the Act of 1828 which the Corporation have or might exercise under this Act and shall be subject to all the liabilities and obligations to which the Corporation are subject and shall perform all the duties of the Corporation under these Acts.

(3) No lease made under this section shall be assignable without the previous consent in writing of the Minister of Transport.

(4) The Corporation shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Minister of Transport and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Corporation from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Act and of this Act as to the keeping delivery and audit of accounts shall apply and be binding upon as well the lessee as the Corporation and all moneys received by the Corporation under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Act.

19. In addition to any general power in this Act contained the Corporation may let for hire or lease for any term not exceeding seven years any warehouses rooms shops baths sheds or other buildings belonging to them separately from any other part of the harbour undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they think fit.

A.D. 1925.

—
Power to
lease ware-
houses.

20.—(1) The Corporation may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge annual fees for such licences for a boat or vessel a fee not exceeding the sum of five shillings and for a boatman or other person a fee not exceeding the sum of one shilling.

Licensing of
pleasure
boats.

(2) Any such licence may be granted for such period as the Corporation may think fit and may be suspended or revoked by the Corporation whenever they shall deem such suspension or revocation to be necessary or desirable in the interests of the public. Provided that the existence of the power to suspend or revoke the licence shall be plainly set forth in the licence itself.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed or at any time during the suspension of the licence for the boat or vessel nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed or at any time during the suspension of the licence for the boat or vessel.

(4) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade.

(5) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted in letters and figures not less than one inch in height and three quarters of an inch in breadth on a conspicuous part of the said boat or vessel his own

A.D. 1925. name and also the number of persons which it is licensed to carry in the form "Licensed to carry persons."

(6) Every person who shall act in contravention of the provisions of this section shall for each offence be liable to a penalty not exceeding forty shillings.

(7) Any person deeming himself aggrieved by the withholding suspension or revocation of any licence under the provisions of this section may appeal to a petty sessional court held after the expiration of two clear days after such withholding suspension or revocation. Provided that the person so aggrieved shall give twenty-four hours written notice of such appeal and the ground thereof to the town clerk and the court shall have power to make such order as they see fit and to award costs such costs to be recoverable summarily as a civil debt.

Power to
borrow.

21.—(1) The Corporation may independently of any other borrowing power borrow at interest the sum requisite for paying the costs charges and expenses of this Act as hereinafter defined and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act which period is in this Act referred to as "the prescribed period."

(2) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of this Act.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Transport.

(3) In order to secure the repayment of the money borrowed under this Act and the payment of interest thereon the Corporation may mortgage or charge the harbour revenue and the borough fund and borough rate of the borough.

Section 234
of Public
Health Act
not to apply.

22. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

23. The Corporation may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

A.D. 1925.

—
Mode of
raising
money.

24. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions
of Public
Health Act
1875 applic-
able.

Section 236 Form of mortgage;

Section 237 Register of mortgages;

Section 238 Transfer of mortgages.

25. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months from the time of borrowing the sum in respect of which the payment is made.

Mode of
payment off
of money
borrowed.

26.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

Sinking
fund.

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or
- (b) by payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the

A.D. 1925.
—

Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or

otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the

A.D. 1925. — repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

Appoint-
ment of
receiver.

27.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

28.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

- (c) out of moneys derived from the sale of land; or A.D. 1925.
(d) out of any capital moneys properly applicable —
to the purpose of the repayment other than
moneys borrowed for that purpose.

29. The Corporation may if they think fit for Contin-
the purpose of forming and maintaining a contingency gency fund.
fund not exceeding at any time the sum of two thousand
pounds to meet any extraordinary claim or demand
or any unforeseen accident or extraordinary damage
appropriate and set apart subject to the provisions of
this Act as to the application of revenue any amount
which they may think fit in any year out of the harbour
revenue and shall deposit any such amount in some
joint stock bank to be increased by accumulation in
the way of compound interest or otherwise or shall
invest the same in statutory securities until required
for any of the purposes aforesaid.

30. The revenue received from rates and charges Application
or otherwise under this Act shall be applicable for the of harbour
purposes and in the order following and not otherwise :— revenue.

- (1) In payment of the costs of and connected with
the preparation and obtaining of this Act :
- (2) In payment of the expense properly chargeable
to revenue of the maintenance repair and
management of the harbour undertaking and
all conveniences connected therewith :
- (3) In payment year by year of the interest accruing
on money borrowed under this Act :
- (4) In payment of the instalments as they become
due in discharge of any money so borrowed
and repayable by instalments and in forming a
sinking fund in accordance with this Act for
payment of principal moneys borrowed under
this Act :
- (5) In making such payments (if any) as the
Corporation think fit into a contingency fund
established under the provisions of this Act.

The surplus (if any) after providing for the purposes
aforesaid shall be carried forward to the ensuing year
or applied to the improvement of the harbour.

And any deficiency in such revenue shall be made
good out of the borough fund and borough rate of the
borough.

A.D. 1925.

Application
of money
borrowed.

31. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Power to
invest funds
in statutory
securities.

32.—(1) When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

(2) In this Act the expression “statutory securities” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

Corporation
not to re-
gard trusts.

33. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for a loan may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trust to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Protection
of lender
from neces-
sity of in-
quiry.

34. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

A.D. 1925.

35. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

36.—(1) The town clerk shall if and when he is requested by the Minister of Health (herein referred to as “the Minister”) so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of this Act. Return to Minister of Health with respect to repayment of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

37.—(1) The Corporation shall within two months after the date to which the annual accounts and balance sheet of their harbour undertaking are made up send Annual account to be sent to

A.D. 1925. a copy of the same to the Minister of Transport and
Minister of section 16 of the General Pier and Harbour Act 1861
Transport. Amendment Act shall apply to and include the Cor-
poration.

(2) The Corporation shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with the foregoing provisions.

(3) The accounts of the Corporation referred to in this section and in section 50 of the Harbours Docks and Piers Clauses Act 1847 respectively shall be made up to the thirty-first day of March in each year.

Byelaws.

38.—(1) In addition to the byelaws which the Corporation are empowered to make under the Act of 1828 or the Acts incorporated with this Act the Corporation may make byelaws with regard to the following matters :—

The regulation and control of persons using the quay and wharf;

The regulation and control of persons hawking fish or other commodities landed at the quay and wharf.

(2) All byelaws made by the Corporation under the powers of this Act may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of such byelaws.

(3) No byelaw shall come into operation until it has received the allowance and confirmation of the Minister of Transport and that allowance and confirmation shall be sufficient for all purposes.

Meters and
weighers.

39. The Corporation shall have the appointment of meters and weighers within the limits of the quay and wharf.

Appoint-
ment of
officers to
enforce
byelaws and
regulations.

40. The Corporation may appoint officers for securing the observance of the byelaws and regulations made by them and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn in and unless in uniform or provided with a warrant.

41. Nothing in this Act affects prejudicially any estate right power or privilege vested in any company or person in respect of any land wharf or property abutting upon the eastern bank of the River Torridge between the boundary of the borough of Bideford on the north and Bideford Bridge and the Corporation shall not demand receive or recover any rates or charges for or in respect of any vessel anchored or moored at any wharf on the eastern bank of the River Torridge within the limits aforesaid or for or in respect of any goods animals fish or other things shipped unshipped or transhipped at any such wharf.

A.D. 1925.

—
Protection
of wharves
at East-the-
Water.

42. For the protection of the Southern Railway Company (hereinafter referred to as "the company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

Protection
of Southern
Railway
Company.

- (1) The Corporation shall not deepen dredge scour or excavate any portion of the foreshore or bed of the River Torridge belonging to the company without their assent nor any other portion of the foreshore or bed of such river within fifty yards of the wharf or other property belonging to the company until the Corporation shall have given to the company twenty-eight clear days notice in writing of their intention so to do and stating the position depth and extent of the intended deepening dredging scouring or excavation of such river:
- (2) Any such works of deepening dredging scouring or excavation carried out under the powers of this Act shall be executed under the supervision and to the reasonable satisfaction of the engineer of the company and in the event of any injury or damage to the said wharf or property being caused directly or indirectly by or resulting from any such works or operations the Corporation shall make full compensation to the company in respect thereof:
- (3) The Corporation shall not construct or execute any works or deepen dredge scour or excavate any portion of the foreshore or bed of the River Torridge in such a manner as to interfere with the access to the wharf or other

[Ch. xxix.] *Bideford Harbour* [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925.

property of the company or so as to divert or alter the natural flow of the said river:

- (4) Any dispute or difference arising under this section shall be settled by an arbitrator appointed by the Minister of Transport and the Arbitration Act 1889 shall apply for the purpose of the determination of any such dispute or difference as if the arbitration were pursuant to a submission.

Protection
of Devon
Trading
Company
and others.

43. For the protection of the Devon Trading Company Limited and Mrs. Elizabeth Baker (trading as Messrs. I. Baker and Son) (each of whom is in this section referred to as "the wharf owners") the following provisions shall unless otherwise agreed in writing apply and have effect (that is to say):—

- (1) The Corporation shall not deepen dredge scour or excavate any portion of the foreshore or bed of the River Torridge belonging to the wharf owners without their assent in writing nor any other portion of the foreshore or bed of such river within fifty yards of the wharves or other property belonging to the wharf owners until the Corporation shall have given to the wharf owners twenty-eight clear days notice in writing of their intention so to do and stating the position depth and extent of the intended deepening dredging scouring or excavation of such river:
- (2) Any such works of deepening dredging scouring or excavation shall be carried out to the reasonable satisfaction and under the superintendence (if given) of the wharf owners and in the event of any injury or damage to the wharves or property of the wharf owners being caused directly or indirectly by or resulting from any such works or operations the Corporation shall make full compensation to the wharf owners in respect thereof:
- (3) The Corporation shall not construct or execute any works or deepen dredge scour or excavate any portion of the foreshore or bed of the

River Torridge in such a manner as to interfere with the access to the wharves or other property of the wharf owners or so as to divert or alter the natural flow of the said river : A.D. 1925.
—

- (4) Any dispute or difference arising under this section shall be submitted for determination by an arbitrator appointed by the Minister of Transport on the application of either party after notice in writing to the other and the provisions of the Arbitration Act 1889 shall apply to any such submission.

44. The Act of 1828 is hereby repealed as from the passing of this Act with the exception of the sections indicated by the marginal notes of such sections contained in the Second Schedule to this Act. Repeal of
Act of 1828
with certain
exceptions.

45. The Corporation shall not under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily. Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

46. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land Crown
rights.

A.D. 1925. hereditaments subjects or rights of whatsoever
— description belonging to His Majesty in right of His
Crown and under the management of the Commissioners
of Crown Lands or of the Board of Trade respectively
without the consent in writing of the Commissioners of
Crown Lands or of the Board of Trade as the case may
be on behalf of His Majesty first had and obtained for
that purpose.

Costs of
Act.

47. The costs charges and expenses preliminary to
and of and incidental to obtaining this Act or otherwise
in relation thereto shall after taxation by the taxing
officer of the House of Lords or of the House of Commons
be paid by the Corporation in the first instance out of
the borough fund and borough rate and ultimately may
be paid out of the moneys borrowed by the Corporation
for that purpose under the authority of this Act.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1925.

FIRST SCHEDULE.

PART I.

RATES ON VESSELS ANCHORING OR MOORING WITHIN THE
RATING LIMITS.

For moorage of any vessel of whatever tonnage the sum of
twopence per ton on the registered tonnage.

For keelage of any vessel of whatever tonnage the sum of
one penny per ton on the registered tonnage.

Such moorage dues shall be chargeable in respect of every
vessel mooring and such keelage dues in respect of every vessel
resting grounding or anchoring within the rating limits.

For every fishing boat using the quay and wharf a sum of
two shillings or as a composition in full of tonnage rates
payable in advance 10s. per quarter.

PART II.

RATES IN RESPECT OF LIVE STOCK FISH AND GOODS
SHIPPED UNSHIPPED OR TRANSHIPPED WITHIN THE
RATING LIMITS.

								s.	d.
Animals live—									
Horses mares or geldings	-	-	-	-	-	each		1	0
Sheep or lambs	-	-	-	-	-	„		0	2
Not otherwise enumerated	-	-	-	-	-	„		0	6
Bricks	-	-	-	-	-	per 100		0	1
Coal	-	-	-	-	-	per ton		0	4
Fish	-	-	-	-	-	per cwt.		0	2
Gravel	-	-	-	-	-	per ton		0	1
Manure	-	-	-	-	-	„		0	4
Goods not otherwise specified	-	-	-	-	-	„		0	6

Such charges shall be calculated upon the actual tonnage
loaded or unloaded from any vessel upon the Quay and Wharf
or from the Quay and Wharf upon any vessel or upon or from
any such vessel moored to the Quay and Wharf.

Fractional parts of any weight or number shall be charged
proportionately.

A.D. 1925.

SECOND SCHEDULE.

SECTIONS OF THE ACT OF 1828 WHICH ARE TO REMAIN
IN FORCE.

Section.

Marginal Note.

- | | |
|----|---|
| 14 | Additional rates and duties on goods &c. in certain cases. |
| 15 | Owners of ships and boats to be accountable in certain cases for damages done to the said harbour &c. |
| 16 | Masters to recover from their servants any sums paid for their default. |
| 17 | Byelaws may be made for regulating the mooring of vessels and the conduct of pilots &c. |
| 19 | Penalty for nuisances on the quay &c. |
| 20 | Proprietor made subject and liable to repairs. |
| 34 | General saving of rights. |
| 35 | Not to affect rights of corporation of Barnstaple. |

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD COPLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
or 120, George Street, Edinburgh;
or through any Bookseller.